

Texas WIC Health and Human Services Commission

Effective July 1, 2026

Policy No. FD:03.0

Designating a Proxy

Purpose

Provide guidance to Local Agency staff on how a participant/parent/guardian/caretaker may designate a proxy.

Authority

7 CFR Part 246.12; 26 TAC Section 366.5

Policy

A participant/parent/guardian/caretaker may designate a proxy in writing for up to 3 months. The proxy must be entered into the MIS.

Definitions

Caretaker – any person, 18 years of age or older, designated by a woman participant, parent, or guardian, to obtain and transact benefits. A caretaker is appointed as a benefit recipient and has custodial responsibility for a participant during most of their time awake each day.

Proxy – any person 16 years of age or older, designated by a woman participant, parent, guardian or caretaker of an infant or child participant, to obtain and transact benefits. The proxy must be entered into the MIS.

Procedures

- I. A participant/parent/guardian/caretaker may designate a proxy when unable to come to the clinic in circumstances where in-person attendance may be required
 - A. Circumstances that may require in-person attendance include but are not limited to:
 1. Receiving Nutrition Education. (Refer to policy [NE:01.0](#)).
 2. Obtaining an assigned and/or replaced Texas WIC Card.

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3. Obtaining and returning a breast pump. (Refer to policy [BF:07.0](#)).
 4. Obtaining a special formula that has been shipped to the clinic. (Refer to policy [FD:18.0](#)).
 - B. A proxy must be designated in writing by the participant/parent/guardian/caretaker when in-person attendance is required. The written statement is valid up to 3 months, and must include:
 1. Proxy name;
 2. Date statement was written (must be current, within 30 days); and
 3. The participant/parent/guardian/caretaker signature.
 - C. If the proxy brings the written statement to the in-person appointment, staff must upload to the MIS. Written statements obtained via electronic transmission will automatically be uploaded and saved to the MIS.
 - D. If a proxy is selected, staff will enter the start date and end date that the proxy designation is valid into the MIS.
 - E. The proxy must provide identification for himself/herself. (Refer to policy [CS:05.0](#)).
- II. Individuals unable to write may make their mark in lieu of a signature on the written statement.
- A. LA staff may assist clients who cannot write with preparation of the written statement; however, another staff member must witness. This option is more helpful to the family if completed at the clinic in advance of a future appointment when it is known the participant/parent/guardian/caretaker will need a proxy.
 - B. A third party other than LA staff may also assist the participant/parent/guardian/caretaker in preparation of the written statement.

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Examples of a third party include but are not limited to family members and friends.

- III. Refer to policy CS:35.0 for a proxy appointed by a participant residing in a shelter/homeless facility/institution.
- IV. In certain circumstances, a proxy may be appointed by the state agency. The state agency will work with the LA to approve a designation of a proxy to obtain benefits for an infant, child, or other participant under age 18 who is subject to disqualification but who would be at health risk, including nutritional risk, if benefits were terminated.
- V. LA employees may not be designated as proxies.